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April 20, 2026

ENGROSSED HOUSE

BILL NO. 4454

By: Newton of the House

and

Jech of the Senate

An Act relating to medical marijuana; amending 63 O.S. 2021, Section 423, as last amended by Section 8, Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2025, Section 423), which relates to medical marijuana processors; providing certain restrictions on edible medical marijuana products; providing packaging restrictions for edible medical marijuana products; defining term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 423, as last amended by Section 8, Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2025, Section 423), is amended to read as follows:

Section 423. A. The Oklahoma Medical Marijuana Authority shall make available on its website in an easy-to-find location an application for a medical marijuana processing license. The Authority shall be authorized to issue two types of medical marijuana processor licenses based on the level of risk posed by the type of processing conducted:

1. Nonhazardous medical marijuana processor license; and

2. Hazardous medical marijuana processor license.

The application fee for a nonhazardous or hazardous medical marijuana processor license shall be paid by the applicant in the amounts provided for in Section 427.14 of this title. A method of payment shall be provided on the website of the Authority. The Authority shall have ninety (90) business days to review the application; approve, reject, or deny the application; and send the approval, rejection, or denial letter stating the reasons for the rejection or denial to the applicant in the same method the application was submitted to the Authority.

B. The Authority shall approve all applications which meet the following criteria:

1. The applicant must be twenty-five (25) years of age or older;

2. The applicant, if applying as an individual, must show residency in this state;

3. All applying entities must show that all members, managers, and board members are Oklahoma residents of this state;

4. An applying entity may show ownership of nonstate residents, but that percentage ownership may not exceed twenty-five percent (25%);

5. All applying individuals or entities must be registered to conduct business in this state; and

1 6. All applicants must disclose all ownership interests in the
2 processing operation.

3 Applicants with a nonviolent felony conviction in the last two
4 (2) years, any other felony conviction in the last five (5) years,
5 inmates in the custody of the Department of Corrections or any
6 person currently incarcerated shall not qualify for a medical
7 marijuana processing license.

8 C. 1. A licensed processor may take marijuana plants and
9 distill or process these plants into concentrates, edibles, and
10 other forms for consumption.

11 2. The Executive Director of the Authority shall make available
12 a set of standards which shall be used by licensed processors in the
13 preparation of edible marijuana products. The standards should be
14 in line with current food preparation guidelines. No excessive or
15 punitive rules may be established by the Executive Director.

16 3. Up to two times a year, the Authority may inspect a
17 processing operation and determine its compliance with the
18 preparation standards. If deficiencies are found, a written report
19 of the deficiency shall be issued to the licensed processor. The
20 licensed processor shall have one (1) month to correct the
21 deficiency or be subject to a fine of Five Hundred Dollars (\$500.00)
22 for each deficiency.

23 4. A licensed processor may sell marijuana products it creates
24 to a licensed dispensary or any other licensed processor. All sales

1 by a licensed processor shall be considered wholesale sales and
2 shall not be subject to taxation.

3 5. Under no circumstances may a licensed processor sell
4 marijuana or any marijuana product directly to a licensed medical
5 marijuana patient or licensed caregiver. However, a licensed
6 processor may process cannabis into a concentrated form for a
7 licensed medical marijuana patient for a fee.

8 6. Licensed processors shall be required to complete a monthly
9 yield and sales report to the Authority. This report shall be due
10 on the fifteenth of each month and shall provide reporting on the
11 previous month. This report shall detail the amount of marijuana
12 and medical marijuana products purchased in pounds, the amount of
13 marijuana cooked or processed in pounds, and the amount of waste in
14 pounds. Additionally, this report shall show total wholesale sales
15 in dollars. The Authority shall have oversight and auditing
16 responsibilities to ensure that all marijuana being processed is
17 accounted for.

18 7. Packages of edible medical marijuana products processed,
19 produced, packaged, or transferred by licensed medical marijuana
20 processors shall clearly indicate the number of servings of
21 tetrahydrocannabinol in each package and the amount of
22 tetrahydrocannabinol in each individual serving. Drinks or
23 beverages shall clearly indicate on the container the number of
24 servings in each drink or beverage and the amount of

1 tetrahydrocannabinol in each individual serving. Edible medical
2 marijuana products shall not:

- 3 a. be attractive to children. As used in this
4 subparagraph, "attractive to children" means the use
5 of any image or words designed or likely to appeal to
6 persons younger than eighteen (18) years of age
7 including, but not limited to, cartoons, toys,
8 animals, food, or depictions of persons younger than
9 eighteen (18) years of age, any other likeness to
10 images, characters, or phrases that are popularly used
11 to advertise to persons younger than eighteen (18)
12 years of age, or any reasonable likeness to
13 commercially available candy,
- 14 b. be manufactured in the shape of humans, cartoons, or
15 animals, or
- 16 c. be manufactured in a form that bears any reasonable
17 resemblance to products available for consumption as
18 commercially available candy.

19 D. The Authority shall oversee the inspection and compliance of
20 licensed processors producing products with marijuana as an
21 additive. If it becomes permissible under federal law, marijuana
22 may be moved across state lines.

23 E. Any device used for the processing or consumption of medical
24 marijuana shall be considered legal to be sold, manufactured,

1 distributed and possessed. No merchant, wholesaler, manufacturer or
2 individual may be unduly harassed or prosecuted for selling,
3 manufacturing or possessing marijuana paraphernalia.

4 SECTION 2. This act shall become effective November 1, 2026.

5 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
6 April 20, 2026 - DO PASS
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